

The U.P. Raw Wool Control Order, 1974

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State of Uttar Pradesh - Act

The U.P. Raw Wool Control Order, 1974

UTTAR PRADESH

India

The U.P. Raw Wool Control Order, 1974

Rule THE-U-P-RAW-WOOL-CONTROL-ORDER-1974 of 1974

Published on 30 January 1970

Commenced on 30 January 1970

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The U.P. Raw Wool Control Order, 1974

Published vide Notification U.P. Gazette, (Extraordinary), dated 30th January, 1970

1.

Short title, extent and commencement.

(1)

This Order may be called the Uttar Pradesh Raw Wool Control Order, 1974.

(2)

It shall extend to the eight districts of the hill region of Uttar Pradesh namely-Pithoragarh, Uttar Kashi, Chamoli, Almora, Naini Tal, Dehra Dun, Tehri-Garhwal and Pauri-Garhwal.

(3)

It shall come into force at once,

2.

Definitions.

- In this Order, unless the context otherwise requires,-

(a)

"Raw Wool" means grease wool or pulled wool and includes any woollen fibre which is not spun mechanically or by hand, of any size and weight and in any packing;

(b)

"Raw Wool Dealer" means any person engaged in the business of sale of raw wool either as a retailer or as a whole-seller;

(c)

"District Magistrate" includes the Additional District Magistrates, the District Supply Officer, District Industries Officer and any other officer authorised by the District Magistrate to perform all or any of his functions under this Order.

3.

Every raw wool dealer shall within 48 hours of the promulgation of this Order notify the stock of raw wool available with him to the District Magistrate of the district in which he holds such stock or part thereof.

4.

Requirement to sell raw wool.

(1)

No raw wool dealer shall sell raw wool to any person other than a person to whom a permit under sub-clause (2) is issued.

(2)

Any raw wool dealer holding stock of raw wool shall sell the whole or a specified part of such stock at the price fixed under clause 5 to such person as may be specified in a permit issued in that behalf by the District Magistrate of the District in which such stock exists and addressed to the person holding such stock.

5.

Price at which raw wool shall be sold under clause 4.

- Subject to any directions of the State Government, the District Magistrate may, by general or special order, fix the price at which different classes of raw wool may be sold by any raw wool dealer in pursuance of the provisions of the clause 4 and such price shall be based on the cost of production, incidental expenses and a reasonable margin of profit.

6.

Account, information and powers of search and seizure.

- The District Magistrate may, with a view to carrying out the provisions of this Order-

(i)

by a general or special order require any raw wool dealer-

(a)

to maintain such records and furnish such information as may be specified in such order;

(b)

to produce to such authority as may be specified in such order any books, accounts or other documents relating to the sale or disposal of raw wool;

(ii)

inspect or cause to be inspected any books, accounts or other documents relating to such raw wool;

(iii)

enter or search or inspect or authorise any person to enter or search or inspect the premises of any raw wool dealer;

(iv)

seize or authorise any person to seize, any raw wool in respect of which he has reason to believe that a contravention of this order is being, has been or is likely to be committed, or any books, accounts or other documents relating thereto.

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